

SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

No. 3

☐ COMMITTEE AMENDMENT

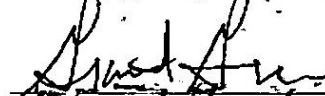
(Date)

I move to amend House Bill No. 1374, by substituting the attached floor substitute (Request #3971) for the title, enacting clause, and entire body of the measure.

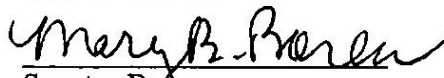
Submitted by:


Senator Woods

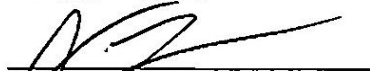
I hereby grant permission for the floor substitute to be adopted.


Senator Green, Chair(required)


Senator Woods

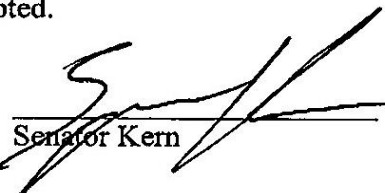

Senator Boren

Senator Dossett

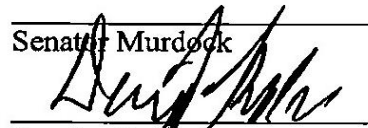

Senator Frix

Senator Jett

Senator Paxton, President Pro Tempore


Senator Kern

Senator McIntosh


Senator Murdock

Senator Rader

Senator Thompson

Senator Daniels, Majority Floor Leader

Note: Energy committee majority requires six (6) members' signatures.

Woods-CN-FS-HB1374
4/21/2026 10:37 AM

(Floor Amendments Only)

Date and Time Filed: 4-23-26 10:22am 

☐ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE

FOR ENGROSSED

HOUSE BILL NO. 1374

By: Dobrinski, Hefner, and
Adams of the House

and

Woods of the Senate

FLOOR SUBSTITUTE

[electric utilities - electrical wildland fire
mitigation plan - considerations in legal
proceedings - costs - liability - action - award for
damages - programs - annual guidelines -
promulgation of certain rules - fund - codification
- effective date]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 158.11 of Title 17, unless there
is created a duplication in numbering, reads as follows:

Sections 1 through 4 of this act shall be known and may be cited
as the "Wildland Fire Mitigation Act".

SECTION 2. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 158.12 of Title 17, unless there
is created a duplication in numbering, reads as follows:

As used in this act:

1 1. "Electric cooperative" means a cooperative as defined
2 pursuant to Section 437.1 of Title 18 of the Oklahoma Statutes;

3 2. "Electric utility" means an electric cooperative or other
4 public utility which produces, transmits, delivers, or furnishes
5 electric current for light, heat, or power;

6 3. "Electrical wildland fire mitigation plan" means a plan that
7 is prepared by an electric utility that addresses mitigation of the
8 risk of equipment causing or exacerbating a wildland fire within the
9 electric utility's service area;

10 4. "Injuries arising from the ownership of property" means all
11 claims for property damage, trespass, nuisance, loss of use,
12 injuries to timber, loss of employment, or emotional distress
13 arising from a wildland fire;

14 5. "Person" means any individual, corporation, company,
15 partnership, limited liability company, joint venture, association,
16 trust, or any other entity, without limitation; and

17 6. "Wildland fire" means any uncontrolled fire on forests,
18 grasslands, fields, croplands, or wildlands and includes any such
19 fire that damages or destroys improvements or structures.

20 SECTION 3. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 158.13 of Title 17, unless there
22 is created a duplication in numbering, reads as follows:

23 A. To reduce the risk of electric utility fires, to protect
24 infrastructure, individuals, their property, and communities, and to

1 ensure the reliability of the electric supply, an electric utility
2 operating in this state may prepare an electrical wildland fire
3 mitigation plan in accordance with the requirements of this section
4 as deemed necessary by the utility for the purpose of mitigating
5 wildland fires. Adoption or nonadoption of a wildland fire
6 mitigation plan, the content of the plan, or implementation of the
7 plan shall not be considered in any civil action or other legal
8 proceedings that seek to recover damages arising from ownership of
9 property that resulted from a wildland fire.

10 B. An electrical wildland fire mitigation plan prepared
11 pursuant to this section may include a description of:

12 1. Geographic areas within the service area in which certain
13 operations of the electric utility may be subject to creating a
14 heightened risk of wildland fire;

15 2. The procedures, standards, and time frames that the electric
16 utility will use to inspect its infrastructure and perform
17 vegetation management;

18 3. Proposed modifications or upgrades to facilities;

19 4. Programs that the electric utility will implement to reduce
20 the risk of its electric facilities initiating or exacerbating a
21 wildland fire;

22 5. The procedures that the electric utility intends to use to
23 restore its electrical system in the event of a wildland fire; and
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1 6. Plans for vegetation management reasonably necessary for the
2 mitigation of wildland fires.

3 C. Any electric utility that prepares an electrical wildland
4 fire mitigation plan under this section shall maintain a copy of
5 such plan and make it available for public inspection upon request.

6 D. An electric utility may seek to recover in rates reasonable,
7 prudently incurred investments and expenditures, including capital
8 costs, as a result of the implementation of an electrical wildland
9 fire mitigation plan.

10 SECTION 4. NEW LAW A new section of law to be codified
11 in the Oklahoma Statutes as Section 158.14 of Title 17, unless there
12 is created a duplication in numbering, reads as follows:

13 A. Except as provided in subsection B of this section, a person
14 who negligently, recklessly, or intentionally causes or spreads a
15 wildland fire shall be liable to a property owner for injury or
16 damage occurring to the owner's property that resulted from such
17 wildland fire. A person liable under this subsection shall be
18 liable regardless of whether the fire begins on federal, tribal,
19 state-owned, or private land.

20 B. In any civil action or other legal proceeding by a property
21 owner seeking to recover damages occurring to the owner's property
22 that resulted from a wildland fire caused by an electric utility, an
23 award for damages to a property owner for injury or damages that
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1 resulted from a wildland fire, including loss of vegetation, shall
2 not include punitive damages or treble damages of any kind.

3 C. The lack of an applicable electrical wildland fire
4 mitigation plan shall not be considered in any award for damages
5 against an electric utility. Further, neither the content of an
6 electrical wildland fire mitigation plan nor whether an electric
7 utility adopted or implemented all or portions of an electrical
8 wildland fire mitigation plan shall be considered in any civil
9 action or proceeding.

10 D. Nothing in this act shall be construed to address or impact
11 liability for and recovery of damages for bodily injuries resulting
12 from a wildland fire.

13 SECTION 5. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 3-3-121 of Title 27A, unless
15 there is created a duplication in numbering, reads as follows:

16 Sections 5 through 7 of this act shall be known and may be cited
17 as the "Wildland Fire Mitigation Program Act".

18 SECTION 6. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 3-3-122 of Title 27A, unless
20 there is created a duplication in numbering, reads as follows:

21 A. 1. The Oklahoma Conservation Commission, in consultation
22 with the Oklahoma Department of Agriculture, Food, and Forestry,
23 shall develop and implement a wildland fire mitigation program
24 within its existing conservation programs to reduce the risk and

1 impact of wildland fires through proactive management and
2 incentivization of mitigation practices. The Commission shall
3 develop and implement a priority incentive structure to encourage
4 voluntary adoption of fire mitigation practices by landowners, land
5 managers, and other stakeholders.

6 2. The Commission shall establish and may subsequently revise
7 annual guidelines for the program including, but not limited to,
8 criteria for eligibility, application processes, incentive
9 structures, cost-share opportunities, and program administration.
10 The Commission shall promulgate rules to effectuate the provisions
11 of this section and Section 7 of this act.

12 B. 1. The Commission shall develop a wildland fire mitigation
13 pilot program to test and refine fire mitigation strategies
14 developed under subsection A of this section in areas historically
15 impacted by large-scale wildland fires.

16 2. The pilot program shall focus on a geographical area
17 encompassing regions affected by wildland fires of at least forty
18 thousand (40,000) acres within the past ten (10) years.

19 C. The Commission shall use data and input from relevant
20 agencies, local governments, and stakeholders to determine eligible
21 areas.

22 D. The Commission shall conduct periodic evaluations of the
23 programs developed under this section to determine the effectiveness
24 of the programs and recommend adjustments as necessary.

1 SECTION 7. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 3-3-123 of Title 27A, unless
3 there is created a duplication in numbering, reads as follows:

4 There is hereby created in the State Treasury a revolving fund
5 for the Oklahoma Conservation Commission to be designated the
6 "Wildland Fire Mitigation Program Revolving Fund". The fund shall
7 be a continuing fund, not subject to fiscal year limitations, and
8 shall consist of all monies received by the Commission from
9 appropriations, grants, private donations, or other funding sources
10 provided for the purpose of implementing the Wildland Fire
11 Mitigation Program Act. All monies accruing to the credit of the
12 fund are hereby appropriated and may be budgeted and expended by the
13 Commission for the purpose provided for in this act. Expenditures
14 from the fund shall be made upon warrants issued by the State
15 Treasurer against claims filed as prescribed by law with the
16 Director of the Office of Management and Enterprise Services for
17 approval and payment.

18 SECTION 8. This act shall become effective November 1, 2026.

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20 60-2-3971 CN 4/23/2026 11:22:24 AM

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